

ASCII MASTER FLOW - PANEL 1/12: Core concept and constitutional origin

CENTRAL QUESTION

Who governs a State when executive power is formally vested in the Governor?

ORIGIN / EVOLUTION

1935: provincial Governors retained broad reserve and discretionary powers under colonial responsibility.

1949: Constituent Assembly rejected an elected Governor to avoid a rival mandate.

26 Jan 1950: parliamentary State executive commenced under Articles 153-167.

1956: Seventh Amendment, section 6 added the Article 153 proviso for one person to govern two or more States.

ANSWER

Governor = constitutional head and process guardian.

CM-led Council = confidence-holding political executive responsible to the Assembly.

Union appointment is a federal link, not legal subordination to the Union government.

ASCII MASTER FLOW - PANEL 2/12: Decoded Articles 153-162: office, tenure, power and clemency

ARTICLE 154: State executive power vested in Governor, exercised constitutionally through subordinate officers.

ARTICLE 155: President appoints by warrant under hand and seal; no election.

ARTICLE 156: President's pleasure + resignation to President + five-year outer term + holdover until successor.

ARTICLE 157: citizen of India and completed age thirty-five.

ARTICLE 158: no legislative seat or other office of profit; residence and protected emoluments.

ARTICLE 159: oath before High Court Chief Justice or available senior judge.

ARTICLE 160: President may provide for an unprovided contingency.

ARTICLE 161: all six clemency limbs for State-field offences; no court-martial limb.

ARTICLE 162: State executive extent broadly follows State legislative competence, subject to Union limits.

ASCII MASTER FLOW - PANEL 3/12: Appointment, pleasure, transfer and immunity

ENTRY

President appoints -> Article 157 eligibility -> Article 158 conditions -> Article 159 oath.

TENURE

Five years is not guaranteed; pleasure can end office.

Transfer, reappointment and additional/common charge are constitutionally possible.

HARGOVIND PANT (1979)

Context: Article 319(d) challenge to appointing a former SPSC member as Governor.

Holding: Governor is an independent constitutional office, not employment under the Union.

B.P. SINGHAL (2010)

Pleasure survives, but removal cannot be arbitrary, capricious, unreasonable or mala fide.

Reasons need not routinely be communicated; a prima facie arbitrariness case requires Union justification.

ARTICLE 361

Personal non-answerability, criminal-process and arrest immunity during term; governmental action remains reviewable.

ASCII MASTER FLOW - PANEL 4/12: Union-State parliamentary mirrors

FORMAL POWER

Union Article 53: executive power vested in President.

State Article 154: executive power vested in Governor.

AID AND ADVICE

Union Article 74: PM-headed Council.

Constitution (Forty-second Amendment) Act, 1976, section 13 substituted Article 74(1), effective 3 Jan 1977, making action according to advice explicit.

Constitution (Forty-fourth Amendment) Act, 1978, section 11 inserted the Article 74(1) proviso, effective 20 Jun 1979: one reconsideration, reiterated advice binding.

State Article 163: CM-headed Council; bounded discretion where Constitution requires.

MINISTERS

Article 75(3): Union Council responsible to Lok Sabha.

Article 164(2): State Council responsible to Legislative Assembly.

BUSINESS / INFORMATION / PARTICIPATION

Union Article 77 and State Article 166: executive action expressed in the formal head's name.

Union Article 78 and State Article 167: PM/CM duties to communicate decisions and furnish information.

Union Article 88 and State Article 177: ministers and law officers may participate; voting follows membership.

ASCII MASTER FLOW - PANEL 5/12: Aid, advice and bounded discretion

DEFAULT

Shamsher Singh (1974), seven judges: President and Governor are formal heads ordinarily acting on ministerial advice; Article 234 appointments are not personal satisfaction.

CONSTITUTIONALLY ANCHORED OR NECESSARILY IMPLIED FIELDS

Article 200 choice after the 2025 Article 143 opinion.

Reasoned Article 356 report.

Hung-Assembly CM appointment and objective floor-test trigger.

Response after demonstrated loss of confidence; dissolution only after testing alternatives.

UT administrator role when separately appointed.

SPECIAL TEXTS - DO NOT GENERALISE

Article 371(2): specified development-board responsibility in Maharashtra/Gujarat.

Article 371A(1)(b): Nagaland law and order.

Article 371C: Manipur Hill Areas Committee reporting/special responsibility.

Article 371H(a): Arunachal Pradesh law and order.

Sixth Schedule: specified autonomous-area constitution/delimitation and royalty-dispute functions.

NO GENERAL DOMAIN

Policy disagreement, minister selection, party leadership and partisan session timing remain outside discretion.

ASCII MASTER FLOW - PANEL 6/12: Chief Minister appointment and confidence mechanism

CLAR MAJORITY

Governor appoints recognised leader under Article 164(1).

HUNG ASSEMBLY

Assess objective, credible support -> invite a likely confidence-holder -> require an early floor test.

Sarkaria preference principles guide neutrality but are not inflexible law.

ELIGIBILITY

B.R. Kapur (2001): a person disqualified from legislative membership cannot use Article 164(4) to become CM.

S.R. Chaudhuri (2001): repeated non-member minister reappointment cannot defeat the six-consecutive-month limit.

FLOOR-TEST CASES

S.R. Bommai (1994): House floor ordinarily tests majority; Article 356 reviewable.

Shivraj Singh Chouhan (2020): objective resignation material justified a prompt floor test; Governor cannot decide the result.

Subhash Desai (2023): intra-party dissent/faction letters alone were insufficient; Governor cannot resolve party leadership.

AFTER LOSS

Resignation/dismissal -> test viable alternative -> dissolution only if no government is possible -> caretaker restraint.

ASCII MASTER FLOW - PANEL 7/12: Articles 168, 171 and 174-177: legislative interface

ARTICLE 168

Governor is a component of State legislature but not a House member.

ARTICLE 171

Governor nominates one-sixth of a Legislative Council from literature, science, art, cooperative movement and social service.

ARTICLE 174

Summon, prorogue and dissolve Assembly; no more than six months between specified sittings.

Nabam Rebia (2016): Governor could not unilaterally pre-pone the session and dictate the removal agenda; these powers are normally advice-bound.

ARTICLES 175-176

Addresses/messages and special address after a general election and at first session each year.

ARTICLE 177

Ministers and Advocate General may speak and participate in both Houses/committees; no vote without membership.

STATE OF PUNJAB (2023)

Governor could not question validly reconvened sittings and had to decide pending Bills under Article 200.

ASCII MASTER FLOW - PANEL 8/12: Articles 200-201 after the 2025 doctrine

ARTICLE 200 - THREE OPTIONS IN 2025 INSC 1333

1 assent;

2 reserve for President;

3 withhold and return with comments, only for a non-Money Bill.

First proviso restricts/implements withholding; it is not a fourth free-standing option.

Second proviso: mandatory reservation where the Bill would so derogate from High Court powers as to endanger its constitutional position.

ARTICLE 201

President assents or withholds; for a non-Money Bill may direct return through Governor.

State Houses must reconsider within six months; re-passage does not compel presidential assent.

REVIEW

No pre-enactment merits review of the chosen option.

Glaring prolonged, unexplained and indefinite inaction permits limited mandamus to act within reasonable time.

No court-created rigid timeline and no deemed assent.

ASCII MASTER FLOW - PANEL 9/12: Punjab, Tamil Nadu and the Article 143 opinion: precise relationship

PUNJAB, 10 NOV 2023

Article 200 does not permit indefinite inaction; withholding must be read with return under the first proviso.

STATE OF TAMIL NADU, 8 APR 2025, 2025 INSC 481

Held the second-round reservations illegal; prescribed general timelines; deemed assent to ten re-passed Bills under Article 142 on the case facts.

ARTICLE 143 OPINION, 20 NOV 2025, 2025 INSC 1333, FIVE JUDGES

Expressly called Tamil Nadu's general timeline paragraphs erroneous.

Rejected deemed assent and judicial substitution.

Held Governor chooses among three Article 200 options in discretion and is not bound by Cabinet advice for that choice.

Barred merits review of a decision, while allowing limited mandamus for glaring prolonged inaction.

RELATIONSHIP

The advisory opinion did not appellate-set aside Tamil Nadu's inter partes relief.

Exam wording: it disapproved/qualified the general propositions; do not say it formally overruled the judgment.

ASCII MASTER FLOW - PANEL 10/12: Ordinance, clemency and judicial-service controls

ARTICLE 213: ORDINANCE

Relevant House(s) not in session + immediate necessity + State competence.

President's instructions required in the three specified sanction/reservation situations.

Act-like force -> mandatory laying -> withdrawal/disapproval or six weeks after later reassembly.

D.C. Wadhwa (1987 report): routine re-promulgation is fraud on Constitution.

Krishna Kumar Singh (2017), seven judges 5:2: laying mandatory; satisfaction reviewable; no automatic survival of every effect.

ARTICLE 161 v ARTICLE 72

Governor: all six forms for State-field offences generally; cannot pardon a death sentence, but may suspend, remit or commute it within that field; no court-martial power.

President: Union-field offences, court-martial and every death sentence, including pardon.

Maru Ram (1980): Cabinet advice binds.

Epuru Sudhakar (2006): review for mala fides, arbitrariness, non-application of mind and material defects.

ARTICLES 233-234

District judges: Governor with High Court consultation.

Other judicial service: Governor under rules after SPSC and High Court consultation.

ASCII MASTER FLOW - PANEL 11/12: Chief Minister, Council, Advocate General and amendments

CHIEF MINISTER / ARTICLE 163

Head of Council and real executive.

Communicate Council decisions and legislative proposals; furnish information; collectivise an individual minister's decision.

ARTICLE 164

Other ministers appointed on CM advice; Third-Schedule oaths of office and secrecy.

Collective responsibility to Legislative Assembly; individual exit mediated by CM.

Non-member ceases after six consecutive months.

NINETY-FIRST AMENDMENT ACT, 2003, SECTION 3

Inserted Articles 164(1A)-(1B), effective 1 Jan 2004.

Total ministers including CM $\leq 15\%$ of total Assembly membership; minimum twelve.

Specified Tenth-Schedule defector barred until term end or earlier re-election.

NINETY-FOURTH AMENDMENT ACT, 2006, SECTION 2

In Article 164 proviso, substituted Chhattisgarh and Jharkhand for Bihar.

Tribal Welfare Minister now mandatory in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha.

ARTICLE 165

Advocate General must qualify as a High Court judge and advises the State government.

ARTICLE 177

Advocate General may speak and participate in either House and committees without an automatic vote.

ASCII MASTER FLOW - PANEL 12/12: Federal friction, reforms, traps and answer spine

FAULT LINE

Union appointment + pleasure tenure + State-facing formation, assent, Article 356 and statutory-university disputes.
Chancellor role is created only by the relevant State university statute, never inherently by Article 153.

REFORMS

Sarkaria (1988): eminent outsider, politically detached, CM consultation, secure convention, Article 356 last resort and House-centred majority tests.
NCRWC (2002): plural appointment committee including PM, Home Minister, Lok Sabha Speaker and State CM; tenure disturbed only in rare cases.
Punchhi (2010): stronger tenure/removal safeguards, reasoned action, floor-test discipline and separation of statutory Chancellor role.
All are proposals unless enacted.

PRELIMS TRAPS

appointed, not elected | five years not guaranteed | no general discretion
Governor cannot pardon death sentence | may suspend/remit/commute it in State field | no court-martial limb
Article 200 has no pocket veto or deemed assent | Article 201 re-passage does not compel assent
Article 361 protects person, not unconstitutional action | Chancellor is statutory.

MAINS SPINE

claim -> decoded Article -> named holding -> mechanism -> federal/accountability cost -> qualification -> matched reform -> neutral constitutional-head verdict.